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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**BENCH BRIEF RE LEAVE STANDARD
AND PROPOSED SAC
COGNIZABILITY**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. SCOPE OF THIS BRIEF

This bench brief is submitted in support of Plaintiff’s Motion for Leave to File the Second Amended Complaint (SAC). Its scope is expressly limited to the leave-to-amend standard and the facial cognizability of the SAC. This brief does not address any pending demurrer or anti-SLAPP motions directed at prior iterations of the pleadings, nor does it present arguments properly reserved for opposition briefing. Its sole purpose is to demonstrate that the proposed SAC clears the threshold for amendment.

II. LEAVE-TO-AMEND STANDARD

California law applies a policy of “great liberality” in allowing amendments to pleadings at any stage of the proceeding so that cases may be justly resolved on their merits. (*Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596.) The rule of great liberality applies unless the opposing party demonstrates prejudice. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

III. DEMURRER-TEST / FOUR-CORNERS ACCEPTANCE OF FACTS

When evaluating whether an amended pleading is legally sufficient, the court must assume the truth of all properly pleaded material facts. (*Blank v. Kirwan*, supra, 39 Cal.3d at p. 318.) The court does not weigh the evidence or determine the probability of success. The sole question at this threshold stage is whether, accepting the allegations as true, the pleading states a claim.

IV. PRIMARY-RIGHTS ANALYSIS FOR COUNTS 1–7

The proposed SAC is not barred by collateral estoppel or res judicata. Those doctrines require that the identical issue was “necessarily decided” in the prior action (*Crowley v. Katleman* (1994) 8 Cal.4th 666) or that the claims involve the “same primary right” (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904; *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 798). The underlying negligence trial adjudicated a motor vehicle collision; it did not and could not adjudicate whether the defense procured the verdict by extrinsic fraud, concealment of discovery history, or deceit of the tribunal. The primary right at issue here—the right to a fair adversary

1 hearing free of extrinsic fraud—is distinct from the primary right to bodily integrity at issue in the
2 underlying trial.

3 **V. PARK V. BOARD OF TRUSTEES GRAVAMEN ISOLATION**

4 Under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062–1064,
5 courts must identify the specific “injury-producing act” underlying each claim when evaluating
6 statutory immunities. The proposed SAC meticulously isolates the injury-producing acts as non-
7 communicative institutional conduct (such as the failure to convey the production history during
8 the file transfer) and extrinsic fraud on the tribunal. The SAC does not premise liability on trial
9 advocacy or statements made to the jury for them to weigh.

10 **VI. EXTRINSIC-FRAUD DOCTRINE**

11 Extrinsic fraud occurs when a party is “deliberately kept in ignorance of the action or proceeding,
12 or in some other way fraudulently prevented from presenting his claim or defense.” (Kulchar v.
13 Kulchar (1969) 1 Cal.3d 467, 471.) An independent equitable action to set aside a judgment pro-
14 cured by extrinsic fraud is a recognized mechanism in California and is not barred by res judicata.
15 (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036; Olivera v. Grace (1942) 19
16 Cal.2d 570, 575–576.)

17 **VII. STATUTORY BASIS FOR THE SECTION 6128(A) COUNT**

18 Business and Professions Code section 6128(a) a statutory cause of action against an attorney who
19 engages in deceit or collusion with intent to deceive the court or any party. The SAC pleads that
20 specific court-facing misrepresentations—asserting that materials received in discovery were of
21 “unknown provenance”—constituted actionable deceit under this section.

22 **VIII. WHY EACH SAC COUNT STATES A CLAIM**

- 23 • **Count 1 (Equitable Vacatur):** Plausibly alleges the Kulchar elements of extrinsic fraud
24 preventing Plaintiff from fully presenting his case.
- 25 • **Count 2 (Fraudulent Concealment):** Alleges the specific duty and failure of prior and suc-
26 cessor counsel to convey and acknowledge the true discovery history of the 911 audio and
27 CAD records.

- **Count 3 (Intentional Misrepresentation):** Details specific representations made to the tribunal that were factually false based on the defense’s own file contents.
- **Count 4 (Aiding & Abetting):** Adequately pleads CSAA’s role as the institutional principal directing, funding, and ratifying the conduct.
- **Count 5 (Declaratory Relief):** Presents an actual controversy regarding the validity of the underlying judgment.
- **Count 6 (Section 6128(a)):** Tracks the statutory elements of attorney deceit against the tribunal.
- **Count 7 (Constructive Fraud, Civ. Code § 1573):** States the Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415 elements on the same nucleus of facts as Counts 2–3, without requiring proof of intent to deceive. The February 28, 2025 officer-of-the-court colloquy (Hr’g Tr. p. 292, ll. 1–7) and the April 16, 2025 admission (RT 7, p. 213, ll. 13–15) supply the duty and reliance anchors at the pleading stage.
- **Count 4 (conspiracy label):** The Fourth Cause adds **civil conspiracy as a joint-liability theory** that must attach to underlying torts; it is not pleaded as a freestanding conspiracy tort (Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503).

IX. CONCLUSION

The proposed Second Amended Complaint is facially cognizable, rests on established equitable and statutory grounds, and satisfies the liberal standard for leave to amend. Leave to file should be granted.

Dated: April 18, 2026



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